



STANDING ORDER NO. CRIME/05/2024

REGISTRATION OF CASES UNDER THE TRADE MARKS ACT, 1999

The Trade Marks Act, 1999 deals with offences and penalties under this Act.

1. The word 'Trade Mark' means a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours. The Act provides for registration of Trade Mark for services in addition to goods.
2. As per the Act, the period of validity of registration of Trade Marks is 10 years.
3. The following offences under The Trade Marks Act-1999 are cognizable.
 - (i) **Sec-103: - Penalty for applying false Trade Mark, trade descriptions, etc.**
 - (ii) **Sec-104: - Penalty for selling goods or providing services to which false Trade Mark or false trade description has been applied.**
 - (iii) **Sec-105: - Enhanced penalty on second or subsequent conviction U/S 103 or 104 under this Act.**
4. In cases of cognizable offences under this Act, it is mandatory for the Police officers to entertain the complaint and register an FIR.
5. The complaint can be filed by the Trade Mark holder him/her self or through its representative.

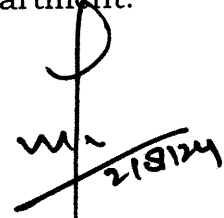
6. In case the complaint is filed by Trade Mark holder's representative, a duly stamped letter of authorization by the Trade Mark owner or by his/her duly authorized agent can be entertained for registration of FIR. The Registration Certificate and other evidences regarding the Intellectual Property Rights (IPRs) can be obtained during the investigation, once the FIR is registered.
7. In all legal proceedings w.r.t offences related to Trade Mark, original registration of the Trade Mark and all subsequent assignments and transmissions of the Trade Mark shall be prima facie evidence of the validity.
8. Investigating Officer shall ascertain the status and veracity of Trademarks from the Trade Mark Registry, i.e. ,www.ipindia.nic.in. If required, this may further be verified from The Registrar, Trade Mark Registry.
9. Search or seizure at any premises shall be conducted only by an officer, not below the rank of an Assistant Commissioner of Police or equivalent rank, with relevant authority under him/her. The officers making any search and seizure shall take opinion of the Registrar, Trade Marks, on facts involved. The search or seizure shall be conducted as per the provisions of Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS).
10. In simple matters, in the Districts, the DIU will take up these cases and investigate. Cases requiring specialized investigation would be dealt with by EOW/Crime Branch.
11. These cases would be investigated by the officers of the rank of Inspectors and above.
12. The training for investigating the cases under this Act would be organized by Police Training Academy, in association with experts/Lawyers on this subject, on regular basis.
13. The Districts/EOW/Crime will maintain the Goshwara for the cases registered under this Act on monthly basis. The final repository of month wise Goshwara of the cases would be the Economic Offences Wing (EOW).

14. **SUPERSESSION CLAUSE**

This Standing Order supersedes the previous Standing Order No. Crime/05/2022 issued vide No.4451-4600/Record Branch/PHQ dated Delhi, the 11.02.2022.

15. **DISCLAIMER**

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI.

No. ^{5351-5500/} /Record Branch/PHQ dated Delhi, the 2/8/24

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Inspr./Knowledge Center/PHQ.

